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Umesh Rao
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Wednesday, 2 December 2020

To,

Pronoy Kamat, Advocate,
AF – 2, First Floor, Casa Immaculada,
Near Progress High School,
Jose Falcao Raod,
Panaji, Goa – 403 001.

REPLY TO LETTER

DATED 27.11.2020

Dear colleague,

This has reference to the Letter communication received from you by my client, Mr. Pasocal Trindade in furtherance of the Letter dated 20.11.2020 issued by him proposing a settlement of litigation pending before various *fora* in respect of the properties bearing Survey Nos. 93/2, 93/3 and 93/4, Bambolim, Goa. I am instructed to address you as under:–

1. At the outset, my client fervently requests you to henceforth ensure that any all discussions held on this subject, be minuted by the Escrivão in order to rule out any misunderstandings or misinterpretations, given the chequered history of this litigation.
2. With regards to the clarifications sought by the Managing Committee of the Comunidade, my client wishes to offer the following para-wise responses:–

With reference to Para *in seriatim*

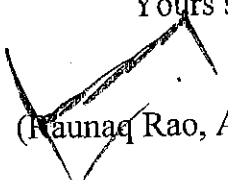
- a. My client is agreeable to allocate the agreed 5000 sq. mts., in Survey No. 93/2 and in such manner that it is abutting an existing road. As per the enquiries conducted by my client with M/s. Loonkar Developers, there are no subsisting encumbrances in respect of the land held by them. M/s. Loonkar Developers has also agreed to release the land held by them, if required, to accommodate the 5000 sq. mts. to be allocated to the Comunidade.
- b. My client is agreeable to allocate an unencumbered area of 5000 sq. mts. in Survey No. 93/2 which has been consented to by M/s. Loonkar Developers. A plan demarcating the said area is under preparation by my clients' architect and shall be made available to the Comunidade in due course.
- c. My client states that Mrs. Albertina Trindade is in full and complete knowledge of the ongoing effort for settlement. My client states that in terms of the Portuguese Civil Code applicable to Goans, he is the administrator of his wife's estate. In any event of the matter, Mrs. Albertina Trindade will sign the Consent Terms for the satisfaction of the Comunidade.
- d. My client states that the proposal extended by him is limited to the properties held by him i.e., Survey Nos. 93/2, 93/3 and 93/4, Bambolim, Goa. These properties are subject-matter of various litigations. My client is willing to share a list of the various cases and counter-cases that exist inter se my client and the Comunidade, including but not limited to



CS/66/2009 filed by Mr. Benevelo Boaventura D'Souza and others. All these cases will be required to be mentioned in the Consent Terms and unconditionally withdrawn after execution thereof.

- e. My client is aware that the Consent Terms would have to be pre-approved by the General Body as well as the Administrative Tribunal. My client request you to inform him of the date of the meeting of the General Body so as to enable him to share the proposed Consent Terms.
- f. My client states that appropriate proceedings will be taken out by him before the Hon'ble High Court of Bombay at Goa in order to seek modification of the directions for early disposal.
- g. Stands answered in view of the foregoing.

Yours sincerely,


(Umesh Rao, Advocate)

CC.:—

Comunidade of Bambolim